

to provide complete and accurate wage statements, (8) failure to keep complete and accurate payroll records, and (9) failure to reimburse necessary business-related expenses and costs.

On September 15, 2025, Petitioner filed Notices of Related Cases seeking to relate the *Stephens* Class Action and *Stephens* PAGA Action to the *Kizart* PAGA Action. On September 16, 2025, Defendant filed Notices of Related Cases seeking to relate the *Stephens* Class Action to the *Stephens* PAGA Action. On September 17, 2025, Petitioner filed a Notice of Related Case seeking to relate the *Kizart* PAGA Action to the *Stephens* Actions.

On September 29, 2025, Petitioner filed the instant petition for coordination.

The *Kizart* case reached a settlement following mediation with Retired Judge Howard R. Broadman on November 19, 2025. (Tabatabaepour Decl. at ¶¶ 3,4.) The motion for approval of the *Kizart* PAGA Settlement is currently set for hearing on June 11, 2026.

Analysis

Petitioner moves pursuant to CCP § 404.1 for an order coordinating the *Stephens* Class Action, *Stephens* PAGA Action, and *Kizart* PAGA Action and assigning them to the Los Angeles County Superior Court.

CCP§ 404.1 provides:

Coordination of civil actions sharing a common question of fact or law is appropriate if one judge hearing all of the actions for all purposes in a selected site or sites will promote the ends of justice taking into account whether the common question of fact or law is predominating and significant to the litigation; the convenience of parties, witnesses, and counsel; the relative development of the actions and the work product of counsel; the efficient utilization of judicial facilities and manpower; the calendar of the courts; the disadvantages of duplicative and inconsistent rulings, orders, or judgments; and, the likelihood of settlement of the actions without further litigation should coordination be denied.

Given the procedural posture of *Kizart*, the Court cannot conclude that coordinating the *Stephens* Actions and *Kizart* Action present common questions of law or fact. All that remains to be decided in *Kizart* is whether the settlement meets the criteria established for judicial approval of PAGA settlements. (See *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 64 [“fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements.]) That court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

The underlying Labor Code disputes will not be decided by the Court.

The Court cannot conclude that formal coordination is necessary or would serve judicial economy. As a consequence, the petition for coordination is **denied**.

13. 9:00 AM CASE NUMBER: MSC16-01118

CASE NAME: YUE VS. TRIGMAX SOLUTIONS

***HEARING ON MOTION IN RE: NEW TRIAL SET BY THE COURTROOM (NOTICE FILED 11.10.2025)**

FILED BY: YUE, DONGXIAO

TENTATIVE RULING:

Plaintiff Dongxiao Yue's motion for a new trial is **denied**.

Plaintiff filed this motion for a new trial, challenging the Court's order granting Defendant Liu's motion to dismiss. (Order filed November 19, 2025.) Plaintiff's motion was filed after the Court heard oral argument on its tentative ruling on the motion to dismiss, but before the order was actually signed by the Court. In any event, it is clear what ruling Plaintiff is challenging here and the order dismissing Plaintiff's claims against Liu has now been filed.

Plaintiff moves for a new trial under Code of Civil Procedure sections 656, 657 and 659. Plaintiff argues that there has been an error in law.

Plaintiff objects to Defendant's opposition as being filed late. Section 659a states that an opposition to a motion for new trial shall be filed 10 days after service of the motion, with an option to extend the deadline by an additional 10 days based upon a showing of good cause or by stipulation. (Code of Civil Procedure section 659a). Here, Plaintiff filed his motion on November 10, 2025. Although Plaintiff did not file a proof of service, in his objection he attaches a printout that purports to show service on Defendant Liu by email on November 10, 2025. (Objection ex. 1.) Defendant filed his opposition on December 15, 2025, which is more than 20 days after Plaintiff filed his motion. Plaintiff then filed an objection to Defendant's opposition and then a reply to Defendant's response to Plaintiff's objection.

The deadlines in section 659a for filing papers in support of and opposition to a new trial motion are not jurisdictional. (*Kabran v. Sharp Memorial Hospital* (2017) 2 Cal.5th 330, 337.) Further, there is no prejudice here as Plaintiff had ample time to file a reply to Defendant's late opposition. The Court will consider Defendant's late opposition, as well as Plaintiff's objection to the opposition, Defendant's response to the objection and finally, Plaintiff's reply to Defendant's response.

Defendant argues this is a motion for reconsideration, not a motion for new trial. A "new trial motion [is] a proper mechanism... to challenge the judgment of dismissal for failure to prosecute. (See *Finnie v. District No. 1 - Pacific Coast Dist. etc. Assn.* (1992) 9 Cal.App.4th 1311, 1316.)" (*Nunn v. JPMorgan Chase Bank, N.A.* (2021) 64 Cal.App.5th 346, 362.) The Court finds that a motion for new trial is a valid motion to challenge the Court's ruling on the motion to dismiss.

Turning to the merits of the motion for new trial, Plaintiff argues that the Court committed an error in law because the Court did not follow controlling authorities, including *McDonough Power Equipment Co. v. Superior Court of Los Angeles County* (1972) 8 Cal.3d 527 (*McDonough*) and *Finnie, supra*, 9 Cal.App.4th 1311.

Plaintiff's first argument on the merits involves an analysis of the cases discussed in the court's order. Plaintiff argues that *McDonough* provided an expansive definition of "trial" such that it covers the situation here, a reversal of the trial court's ruling granting a motion to dismiss for lack of prosecution. Plaintiff discusses *Finnie* and *Nunn* and how the *Finnie* found the reasoning in *Fannin Corp. v. Superior Court* (1974) 36 Cal.App.3d 745 to be "questionable". Plaintiff also notes that *Wilshire Bundy Corp. v. Auerbach* (1991) 228 Cal.App.3d 1280 and *Greene v. Howmedica, Inc.* (1993) 13 Cal.App.4th 912 did not discuss *McDonough*. The Court considered all these cases in its prior order

and has reconsidered these cases.

McDonough and *Finnie* involved reversals of dismissals based upon rulings from demurrer and *Nunn* involved a reversal from an order granting summary judgment. None of Plaintiff's cited cases hold that the reversal of an order granting a motion to dismiss for failure to prosecute constitutes a "new trial" under section 583.310-583.360. Further, even assuming that *Finnie's* attempt to limit *Fannin* so *Fannin* only applies in cases where there was not an unqualified reversal (*Finnie, supra*, 8 Cal.App.4th at 1319 fn. 5) that still does not explain the holding *Greene* or the dicta in *Wilshire*.

Plaintiff argues that the meaning of "trial" should be consistent when used in section 583, et seq and sections 656, et seq. While there is some logic to that argument, the cases cited by Plaintiff, including *McDonough* and *Finnie*, show that Courts do not use the definition of trial interchangeably between the two sections. Rather, the courts provide separate analysis for what is a trial in a motion for a new trial and what constitutes a trial in a motion under 583, et seq. (See *McDonough, supra*, 8 Cal.3d at 531 [section 656 does not provide an exclusive definition of trial or new trial, nor does it establish an identity of meaning between the term trial as used in section 656 and as used in section 583]; see also, *Finnie, supra*, 9 Cal.App.4th at 1317.)

The Court is not convinced that its prior order granting the motion to dismiss was made in error and therefore denies this motion.

14. 9:00 AM CASE NUMBER: MSC19-02640

CASE NAME: ALAMMARI VS OCEAN CITIES PIZZA, INC.

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM (CONTINUED FROM 12.11.2025)**

FILED BY:

TENTATIVE RULING:

The Settlement Administrator's supplemental declaration (filed January 12, 2026), shows that the settlement terms have been implemented. The Administrator is authorized to convey \$342,817.99 in unclaimed funds to the State Bar's Justice Gap Fund as the designated cy pres beneficiary. Counsel are directed to prepare an amended judgment so reflecting, pursuant to the terms of Code of Civil Procedure section 384.5. Once the Amended Judgment is filed with the court, the Settlement Administrator is directed to disburse the remaining 5% of attorney's fees (\$51,356) to plaintiff's counsel. No further proceedings are contemplated.

15. 9:00 AM CASE NUMBER: MSC20-01334

CASE NAME: DASIA SEABROOKS VS CAR DEALER PROMOTIONS

***HEARING ON MOTION IN RE: FINAL COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

The Settlement Administrator's declaration shows that the settlement terms have been implemented. The Administrator is authorized to convey \$42,346.45 in unclaimed funds to Legal Aid at Work of San Francisco, the designated cy pres beneficiary. Counsel are directed to prepare an